IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAII

Electronically Filed
FIRST CIRCUIT
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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors Plaintiff, v. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-003776 ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF/ COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.'S NON-HEARING MOTION FOR RECONSIDERATION
NIKODEM PIKOR Counterclaim Plaintiff. v. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors Counterclaim Defendant.	
NIKODEM PIKOR Third Party Plaintiff. v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation Third Party Defendant.	

ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.'S NON-HEARING MOTION FOR RECONSIDERATION

On July 9, 2020, Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc. (AOAO Marine Surf), through their counsel Barron T. Oda, filed a Non-Hearing Motion for Reconsideration of the Order Granting Defendant and Counterclaim/Third Party Plaintiff Nikodem Pikor's Motion For Leave To Amend Answer, To Add Counterclaims, And To Grant Jury Demand Amend Answer and to Add Counterclaims, filed by the court on June 29, 2020. In this non-hearing motion, AOAO Marine Surf requests the court to reconsider granting Nikodem Pikor's (Mr. Pikor) jury demand and the court's leave to amend and add counterclaims. Mr. Pikor, through his counsel Amanda L. Dutcher, filed his opposition to the Motion for Reconsideration on July 20, 2020.

The court having reviewed AOAO Marine Surf's Non-Hearing Motion, Mr. Pikor's Opposition, filed by their respective counsels, the arguments therein, as well as District Court Rules of Civil Procedure, Rule 15(a) and Rule 38, and Article 1, Section 13 of the Constitution of the State of Hawaii, the court grants AOAO Marine Surf's Motion in part and denies in part as follows:

1. The court grants the Non-Hearing Motion for Reconsideration as to AOAO Marine Surf's request to deny the jury demand. The court denies the Mr. Pikor's jury demand due to lack of timeliness, lack of demonstrated excusable neglect, and because the Mr. Pikor's counterclaim does not state a specific amount of damages of $5,000.00 or more.

2. The court denies the Non-Hearing Motion for Reconsideration as to the court's granting of leave to amend and add counterclaims. Under District Court Rules of Civil Procedure, Rule 15(a), leave to amend pleadings "shall be freely given," and AOAO Marine Surf has not offered additional support or evidence as to why the court should not grant leave to amend.

Dated: SEP 25 2020, Honolulu, Hawaii.

Judge of the Above-Entitled Court

04/13